

NON-DISCLOSURE AGREEMENT

Effective Date: [Date]

Parties:

1. **[Party A Name]** ("Discloser")
Address: [Full Address]
PAN: [PAN Number]
2. **[Party B Name]** ("Recipient")
Address: [Full Address]
PAN: [PAN Number]

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" includes all non-public data shared by Discloser, whether:

- Oral, written, or digital;
- Marked "Confidential";
- Evidenced by documentation (e.g., business plans, customer lists, technical specs, financial data).

2. OBLIGATIONS OF RECIPIENT

Recipient must:

- Use Confidential Information **only** for evaluating a business relationship with Discloser;
- Not disclose it to third parties without prior written consent;
- Implement reasonable security measures (e.g., password protection, restricted access);
- Return/delete all Confidential Information upon Discloser's request or termination of talks.

3. EXCLUSIONS FROM CONFIDENTIALITY

This Agreement does not apply to information that is:

- Publicly known at the time of disclosure;
- Received legally from a third party without restrictions;
- Independently developed by Recipient without using Discloser's Confidential Information.

4. TERM AND TERMINATION

This Agreement lasts for **[Term Length, e.g., 2 years]** from the Effective Date. Either party may terminate immediately if the other breaches obligations.

5. GOVERNING LAW AND JURISDICTION

Governed by the **laws of India**. Disputes resolved in **courts/arbitration in Mumbai, India**.

6. ENTIRE AGREEMENT

This is the full agreement between parties. No prior representations exist except those in this document.

SIGNATURES

Discloser: _____

Name: [Party A Name]

Designation: [Title, e.g., Director]

Date: _____

Recipient: _____

Name: [Party B Name]

Designation: [Title, e.g., CEO]

Date: _____